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Conservatorship of Ariel J. Hughes

26-44501

REVIEW HEARING

APPEARANCE REQUIRED
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Conservatorship of Larissa Anne Baity

PR23559

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Co-Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years on August 22, 2028, at 8:30 a.m. in Dept. B The Court Investigator shall prepare a biennial investigator report for the biennial review hearing date. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

City of Napa v. Brian R. Silver et al

25CV000143

CITY’S MOTION FOR ATTORNEYS’ FEES AND COSTS

TENTATIVE RULING: The Clerk is directed to STRIKE the Opposition filed August 17, 2026, by Respondent Brian Silver. The motion is GRANTED IN PART. The City is awarded attorneys’ fees in the amount of \$14,415, costs of suit in the amount of \$1,926.36 and costs of enforcement in the amount of \$2,448.72 for a total of \$18,790.08.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

The instant Motion was originally set for hearing on July 28, 2026. On July 20, 2026, Respondent Brian Silver applied, *ex parte*, for an order continuing the hearing and resetting the deadline for filing opposition thereto. The Court granted the application, and on July 22, 2026, entered an Order in the form proposed by Mr. Silver. That Order provides that “[t]he hearing on Petitioner City of Napa’s Motion for Attorneys’ Fees . . . is continued to August 20, 2026 . . . [¶]

Respondent shall file and serve his opposition to Petitioner's Motion for Attorneys' Fees no later than nine (9) court days before the new hearing date, in accordance with California Code of Civil Procedure section 1005(b)."

On August 17, 2026, Respondent, without further leave of Court, filed a 26-page Opposition with some 316 pages of exhibits attached thereto. Because the Opposition was filed well past the deadline established by the Court's July 22, 2026, Order and Code of Civil Procedure section 1005, subdivision (b), and further because it exceeds the page limits of California Rules of Court, rule 3.1113, subdivision (b), the Court orders the Opposition STRICKEN from the record. (See Code Civ. Proc., § 436, subd. (b).)

Petitioner City of Napa (City) moves, pursuant to Health and Safety Code sections 17980.7, subdivision (c)(11) and 17980.7, subdivision (d)(1), Code of Civil Procedure section 1032, subdivision (a)(4), and Napa Municipal Code sections 1.16.010-050, for an order: (1) Declaring that the parcel of real property known as 810, 814 and 816 Brown Street, Napa, California 94559, identified by Assessor's Parcel Number 003-222-011-000 (Subject Property) was substantially dangerous to the health and safety of residents and the public prior to the initiation of this action; (2) Declaring the City the prevailing party in this action; (3) Awarding the City its attorneys' fees and costs in the amount of \$20,040.08 (\$15,665.00 in attorneys' fees, \$1,926.36 in litigation costs and \$2,448.72 in City code enforcement costs), and Any further amounts the Court deems appropriate.

The prevailing party in an action to abate a nuisance based on building code violations, pursuant to Health & Safety Code section 17980, *et seq.*, "shall be entitled to reasonable attorney's fees and court costs as may be fixed by the court." (Health & Saf. Code, § 17980.7, subd. (c)(11).)

The Court finds that the City attained substantially, if not all, of its objectives through the instant litigation, and is, therefore, the prevailing party for purposes of awarding fees and costs. "[W]e have taken a broad, pragmatic view of what constitutes a 'successful party.' 'Our prior cases uniformly explain that an attorney fee award may be justified even when plaintiff's legal action does not result in a favorable final judgment. [Citations.]" (*Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 565.)

Moreover, "If the court finds that a building is in a condition that substantially endangers the health and safety of residents pursuant to Section 17980.6, upon the entry of any order or judgment, the court shall . . . [o]rder the owner to pay all reasonable and actual costs of the enforcement agency, including, but not limited to, inspection costs, investigation costs, enforcement costs, attorney's fees or costs, and all costs of prosecution." (Health & Saf. Code, § 17980.7, subd. (d)(1).)

The Court finds, from the evidence presented, that the subject building was, prior to the litigation, in a condition that substantially endangered the health and safety of residence pursuant to Health & Safety Code section 17980.6.

The Court finds that the rate charged by counsel for the City in this action is well within the range typically charged in the community for similar work. (See Declaration of Amanda A. Pope at ¶ 27 (Pope Decl.).) The Court also finds that the acts undertaken by counsel, for which the City seeks an award of attorneys' fees, were reasonably necessary to the prosecution of the action, and further finds that the amount of time spent on such acts were reasonable. (See *id.* at ¶ 33, and Exhs. A, D, and E.) However, the Court does not award attorneys' fees for anticipated future costs. (See *id.* at ¶ 33.)

The Court also finds that the amounts and types of costs set forth in the Memorandum of Costs appear reasonable on their face. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267; *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243.)

Finally, "The city shall be entitled to recover its costs related to enforcing any code violation. . . . The city is authorized to impose, on each responsible person, a fee to cover enforcement costs, in addition to any applicable fines or penalties." (City of Napa Municipal Code at § 1.16.050, subd. (A) (Napa Muni. Code).) "The amount of any fees to cover enforcement costs . . . may be established by documentation of the actual enforcement costs incurred by the city." (*Id.* at subd. (C).)

The Court finds that the City has produced evidence sufficient to support its request for enforcement costs in the amount of \$2,448.72. (See Pope Decl. at ¶ 33, Exh. D.)

Mr. Silver appears to concede all of the foregoing by failing to file anything by way of opposition to the instant Motion.

Based on the foregoing, the Motion is GRANTED IN PART. The City is awarded attorneys' fees in the amount of \$14,415, costs of suit in the amount of \$1,926.36 and costs of enforcement in the amount of \$2,448.72 for a total of \$18,790.08.

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Alexander Rowland et al v. Newco Capital Group LLC et al

25CV002471

DEMURRER OF DEFENDANTS NEWCO CAPITAL GROUP LLC AND NEWCO CAPITAL GROUP VI LLC TO COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to September 24, 2026 at 8:30 a.m. in Dept. B.

Defendants failed to include in the notice of the Demurrer proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court's tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice to all other parties, and (3) file a proof of service of the Amended Notice pursuant to Rules of Court, rule 3.1300, subd. (c).